

25PSCV00343 25PSCV00343

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-10

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Case Number: 25PSCV00343 Hearing Date: August 10, 2026 Dept: G

Plaintiff

Walter Genie's Motion to Vacate Dismissal

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Walter Genie's Motion to Vacate Dismissal is GRANTED.

BACKGROUND

This

is a personal injury action arising out of a motor vehicle collision. On January 31, 2023, defendants Sergio Yanez, Gisette Yanez, and Esaith Aguilar Perkins allegedly collided their vehicle into that of plaintiff Walter Genie (Genie).

On

January 31, 2025, Genie filed the Complaint, alleging causes of action for (1) motor vehicle negligence, (1)(a) negligence per se, (2) negligent infliction of emotional distress, and (3) negligent entrustment.

On

April 23, 2026, Genie dismissed Sergio Yanez and Gisette Yanez.

On June

24, 2026, the court dismissed the Complaint for Genie's failure to appear. On July 16, 2026, Genie filed this motion to vacate dismissal, which is unopposed.

The
motion is set for hearing on August 10, 2026.

ANALYSIS

Genie
moves to vacate the dismissal of the Complaint based on attorney error. For the following reasons, the motion is GRANTED.

Legal
Standard

The
court must vacate a judgment or dismissal (1) if the motion to vacate was filed within six months and (2) if the judgment or dismissal was the result of the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) The attorney must include a sworn affidavit attesting to their mistake, and the court must direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel and parties. (Ibid.) To obtain relief under the mandatory provision, "counsel need not show that his or her mistake, inadvertence, surprise or neglect was excusable. No reason need be given for the existence of one of these circumstances. Attestation that one of these reasons existed is sufficient to obtain relief unless the trial court finds that the dismissal did not occur because of these reasons." (Graham v. Beers (1994) 30 Cal.App.4th 1656, 1660.) "The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief [under Section 473] made after that period has elapsed." (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42, emphasis added.)

Discussion

On
June 24, 2026, the court dismissed Genie's Complaint based on his failure to appear at the hearing that day. (6/24/2026 Min. Order, p. 1.) Genie filed this motion on July 16, 2026, well before the six-month jurisdictional deadline. (Mot., p. 1; see Code

Civ. Proc., § 473, subd. (b).) Genie's

counsel attests in his sworn declaration that he failed to calendar the June

24, 2026 hearing, which resulted in the nonappearance and resulting dismissal. (Yadegar Decl., ¶¶ 6–8.) This is a sufficient basis to grant the

motion under Code of Civil Procedure 473, subdivision (b). (See Graham, supra, 30

Cal.App.4th at 1660, stating, "No reason need be given for the existence of

[mistake, inadvertence, surprise, or neglect].

Attestation that one of these reasons existed is sufficient to obtain

relief. . . .")

Therefore,

the motion to vacate dismissal is GRANTED.

CONCLUSION

For

these reasons, the motion to vacate dismissal is GRANTED.